Mutual Non-Disclosure Agreement (NDA) — PivetTrack

Between: PIVET DIGITAL AUTOMATIONS LLC and the Prospective Client
Product under evaluation: PivetTrack (Software as a Service — Inventory Management System / WMS)
Reference jurisdiction: State of Florida, United States of America
Document version: 1.2 (draft) — November 4, 2026

> **English translation.** This is a translation of the Spanish NDA v1.2, provided for convenience. It has not been reviewed by an attorney. If the two versions conflict, the Spanish text prevails.
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> **Preliminary note on this document.** This document is a **contract template (draft)**, available for review by the Client and its advisors. It does not bind the Parties until it is executed, and it is subject to the *Florida Uniform Trade Secrets Act* (Fla. Stat. §§ 688.001 *et seq.*) and the federal *Defend Trade Secrets Act* (18 U.S.C. § 1836 *et seq.*), among other applicable laws. PIVET DIGITAL AUTOMATIONS LLC reserves the right to modify this document before it is formally executed.

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1. Parties and General Definitions

1.1. The Parties

"the Provider", **"Pivet"** or **"PIVET"** means **PIVET DIGITAL AUTOMATIONS LLC**, a limited liability company duly organized and existing under the laws of the State of Florida, developer and exclusive owner of the **PivetTrack** software.

"the Client" or **"the Prospective Client"** means the corporate legal entity (B2B) identified in the signature block of Section 15, which is evaluating the possible contracting and implementation of PivetTrack.

The Provider and the Client are each referred to individually as **"a Party"** and together as **"the Parties"**.

1.2. Mutual Nature of the Agreement

This is a **Mutual Non-Disclosure Agreement**: either Party may act, interchangeably and as the case may be, as **"Disclosing Party"** (the one disclosing its own confidential information) or **"Receiving Party"** (the one receiving it), and each Party may hold both roles at the same time with respect to different information. All confidentiality, custody and restricted-use obligations in this Agreement apply **reciprocally** to both Parties, in their capacity as Receiving Party of the other's information.

1.3. The Software — "PivetTrack"

"PivetTrack" means the Software as a Service (SaaS) platform exclusively owned by the Provider for inventory and warehouse management (*Warehouse Management System*), the evaluation of which by the Client is the purpose of this Agreement.

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2. Purpose of the Agreement

The Parties are interested in exploring a potential commercial relationship consisting of the possible contracting and implementation of the PivetTrack Software, as a service, for the Client's operations (the **"Proposed Transaction"**). In order to assess the technical, operational and commercial feasibility of the Proposed Transaction, each Party may need to disclose to the other sensitive and confidential information of competitive value.

The **sole and exclusive purpose** of this Agreement is to set the terms and conditions under which that information will be shared, safeguarded and used by the Parties **exclusively for purposes of evaluating the Proposed Transaction**, and for no other purpose.

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3. Definition of Confidential Information

For purposes of this Agreement, **"Confidential Information"** means all information, of any nature and in any medium or format (written, oral, electronic, visual or otherwise), that a Party (the Disclosing Party) discloses to the other (the Receiving Party) in connection with the evaluation of the Proposed Transaction, including, without limitation, that described in Sections 3.1 and 3.2.

3.1. Client's Confidential Information

With respect to the Client, Confidential Information includes, among others: its operating and business databases; product catalogs in Excel or other format; lists and contact details of its suppliers and customers; structures and amounts of operating costs; margins, pricing policies and other *trade secrets*; and the results of its internal inventory audits, including any discrepancy, finding or sensitive operating data that the Client shares with the Provider for the purpose of evaluating the implementation of PivetTrack.

3.2. Provider's Confidential Information

With respect to the Provider, Confidential Information includes, among others:

(a) The **source code** of PivetTrack, in its entirety and in any of its components, modules or versions;

(b) The **architectural design of the engine that keeps the historical and immutable record of transactions ("Kardex")**, including, without limitation, its concurrency control and transactional locking mechanisms, its rules for tracing each movement to its source document, and the technical methods by which the system prevents, at an architectural level, the retroactive alteration or deletion of a completed movement — without the disclosure of this general description implying, in any way, the disclosure of the source code underlying that design;

(c) The **deterministic inventory valuation algorithm** (calculation of the Weighted Average Cost or "WAC"), including its real-time automatic recalculation logic, the rules that determine which types of movement do or do not affect that value, and the concurrency locking mechanisms that ensure its consistency under simultaneous operations — without this implying the disclosure of its specific formula, implementation or coding;

(d) The **relational database schemas** of the Software, including its entity model, relationships, integrity constraints and indexes, and the **user interface (UI/UX) flows**, including their navigation logic, dynamic validation and client-server interaction;

(e) The user manuals and other functional or operational documentation of PivetTrack not publicly released by the Provider;

(f) The Provider's unpublished price structures, rates, discounts and commercial terms; and

(g) The *product roadmap*, including features under development, planned or not commercially released.

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4. Exclusions

Information that the Receiving Party can demonstrate by contemporaneous written evidence falls within any of the following will not be considered Confidential Information, and accordingly will not be subject to the obligations of this Agreement:

(a) it was in the **public domain** at the time of its disclosure, or subsequently became so without the fault or participation of the Receiving Party;

(b) it was **independently developed** by the Receiving Party, without use of or reference to the Disclosing Party's Confidential Information, as shown in its own records;

(c) it was lawfully in the possession of the Receiving Party, without any confidentiality restriction, before its disclosure by the Disclosing Party under this Agreement;

(d) it was lawfully obtained by the Receiving Party from a third party that was not itself subject to a confidentiality obligation with respect to that information; or

(e) it must be disclosed by requirement of a law, regulation, court order or competent governmental authority, provided that, to the extent legally possible, the Receiving Party gives prior notice of that requirement to the Disclosing Party, so that it may seek an appropriate protective measure.

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5. Obligations of the Parties

5.1. Duty of Strict Custody

Each Party, in its capacity as Receiving Party, undertakes to protect the other Party's Confidential Information with at least the **same degree of care** it uses to protect its own confidential information of a similar nature, and in no case with less than a reasonable degree of care within its industry. Confidential Information may be disclosed internally only to those employees, directors, advisors or contractors of the Receiving Party who have a legitimate *need to know* for purposes of evaluating the Proposed Transaction, and who are in turn subject to confidentiality obligations at least as strict as those set out here.

5.2. Use Exclusively for Evaluating the Business

Confidential Information received under this Agreement **may be used by the Receiving Party only for the exclusive purpose** of evaluating, negotiating and eventually carrying out the Proposed Transaction described in Section 2. Any use of Confidential Information for another purpose is expressly prohibited, including, without limitation, its commercial, productive or competitive exploitation outside that evaluation.

5.3. Express Prohibition of Reverse Engineering

The Client, in its capacity as Receiving Party of the Provider's Confidential Information, expressly undertakes **not to carry out, attempt to carry out, or authorize or assist a third party in carrying out**:

(a) ***reverse engineering***, decompilation, disassembly or any other technical process aimed at deriving the source code, underlying algorithms, internal architecture or business logic of PivetTrack from its object code, its observable behavior, or any test, demonstration or evaluation access the Provider grants;

(b) **copying, reproduction or extraction** of the architectural design of the Kardex engine, the WAC calculation algorithm, the database schemas or the user interface flows described in Section 3.2, in order to replicate, adapt or incorporate them, in whole or in part, into a system of its own or of a third party; or

(c) the **development, financing or commissioning from third parties of the development of software competing** with PivetTrack that is based, directly or indirectly, on the Confidential Information disclosed by the Provider under this Agreement.

A breach of this Section 5.3 will constitute, for all purposes of this Agreement, a **serious and essential** breach, without prejudice to the other legal actions available to the Provider under applicable trade secret

protection law (including, without limitation, the *Florida Uniform Trade Secrets Act* and the federal *Defend Trade Secrets Act*).

5.4. No Disclosure to Third Parties

Neither Party will disclose the other's Confidential Information to any third party without the prior written consent of the Disclosing Party, except as permitted by Section 5.1 (personnel with a legitimate need to know) or by the exception in Section 4(e).

5.5. Liability for Representatives (Vicarious Liability)

Each Party, in its capacity as Receiving Party, will be **fully, jointly and strictly liable** to the Disclosing Party for any breach of this Agreement committed by its directors, officers, employees, advisors, independent contractors or any other representative to whom that Receiving Party has given access to the Confidential Information (collectively, its **"Representatives"**).

The Receiving Party will be liable for the acts or omissions of its Representatives that contravene this Agreement **as if the breach had been committed directly by the Receiving Party itself**, without any need to prove its fault or negligence in the selection, instruction or supervision of the infringing Representative, and without prejudice to any actions the Receiving Party may additionally bring against its own Representative under the legal relationship between them. Extending the confidentiality obligation to Representatives under Section 5.1 does not release the Receiving Party from this liability; rather, it is precisely its basis.

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6. Intellectual Property

The disclosure of Confidential Information under this Agreement **does not transfer, assign, license or grant any right** in the Disclosing Party's intellectual property, including, without limitation, copyrights, patents, trademarks or trade secrets. In particular, the Client acknowledges that all right, title and interest in PivetTrack —including its source code, its architecture and the items described in Section 3.2— belongs and will continue to belong exclusively to the Provider, and that the access granted for evaluation purposes under this Agreement **does not constitute a license for use, distribution or exploitation** of the Software.

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7. Non-Solicitation of Personnel

During the conversations regarding the Proposed Transaction and for an additional period of **twelve (12) months** from the end of those conversations, the Client undertakes **not to solicit, recruit, attempt to hire or otherwise induce**, whether as an employee, independent contractor or under any other arrangement, any officer, employee, developer or contractor of PIVET DIGITAL AUTOMATIONS LLC who has been **involved in the presentation, demonstration or evaluation of the Proposed Transaction**.

This prohibition does not apply to: (a) unsolicited applications made by such Provider personnel on their own initiative, without solicitation, incentive or prior action by the Client; or (b) hires resulting from a general recruitment process of the Client (for example, a public job posting not specifically directed at the

Provider's personnel), provided that the process was not directed, oriented or induced toward the Provider's personnel covered by this Section.

The Client acknowledges that the Provider's technical and commercial personnel involved in the evaluation of the Proposed Transaction are an asset of strategic value to PIVET DIGITAL AUTOMATIONS LLC, and that soliciting them through the privileged access this Agreement grants would cause harm for which monetary compensation alone might be insufficient, such harm being subject, as applicable, to the remedies in Section 11.

8. No Obligation to Contract

Nothing in this Agreement obliges either Party to proceed with, negotiate in good faith to conclusion, or actually enter into the Proposed Transaction or any other contract. Each Party retains the right to end the conversations at any time and for any reason, without liability to the other arising from that termination, without prejudice to the survival of the confidentiality obligations in this Agreement under Section 10, and of the non-solicitation obligation in Section 7.

9. Return or Destruction of Information

At the written request of the Disclosing Party, or automatically at the end of the conversations regarding the Proposed Transaction, the Receiving Party must, at the Disclosing Party's choice, **return or destroy** all Confidential Information received in physical or digital form, including every copy, extract or summary of it, and certify that return or destruction in writing within ten (10) business days. This obligation does not apply to copies the Receiving Party must keep under an internal data backup policy of general application not specifically directed at this Confidential Information, or under a legal or regulatory obligation, which will in all cases remain subject to the confidentiality obligations of this Agreement for as long as they exist.

10. Term and Duration of Confidentiality

This Agreement takes effect on the date it is executed by both Parties and remains in force while the Parties maintain active conversations regarding the Proposed Transaction. Regardless of the end of those conversations or of this Agreement, **the confidentiality, non-use and non-disclosure obligations set out here will remain in force for five (5) years from the date the conversations between the Parties end**.

The foregoing is without prejudice to the fact that, for Confidential Information that qualifies as a *trade secret* under applicable law, the confidentiality obligations will survive for as long as that information retains that status under the law, regardless of the five-year (5) period stated above.

11. Remedies for Breach

Each Party acknowledges that a breach of the confidentiality, non-use or non-disclosure obligations in this Agreement —particularly the prohibition of reverse engineering in Section 5.3— could cause the Disclosing Party **irreparable harm** for which *monetary damages* could be an insufficient remedy. Accordingly, the Parties agree that, in the event of a breach or threatened breach of this Agreement, the affected Party will be entitled to seek ***injunctive relief*** before the competent court, without having to post a *bond* beyond the minimum required by law, in addition to any other remedy available at law or in equity.

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12. No Warranties on the Information

All Confidential Information is provided **"AS IS"**, without warranty of any kind, express or implied, as to its accuracy, completeness or fitness for a particular purpose. Neither Party will be liable to the other for decisions the other makes based on the Confidential Information received, without prejudice to the specific liabilities, if any, established in any services contract the Parties may enter into.

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13. Governing Law and Jurisdiction

This Agreement is governed by and construed in accordance with the laws of the **State of Florida, United States of America**, excluding its conflict of laws rules. The Parties submit to the exclusive jurisdiction of the competent state or federal courts located in **Miami-Dade County, Florida** for the resolution of any dispute arising from this Agreement, expressly waiving any other venue to which they may be entitled; disputes are not subject to arbitration. **To the fullest extent permitted by law, each Party waives its right to a jury trial** in any dispute arising out of this Agreement.

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14. General Provisions

14.1. Entire Agreement

This Agreement constitutes the entire agreement between the Parties regarding the confidentiality of the information shared in connection with the evaluation of the Proposed Transaction, and replaces any prior understanding or agreement, oral or written, on the same subject. This Agreement may be modified only by a written instrument executed by both Parties.

14.2. Severability

If any provision of this Agreement is held invalid or unenforceable by a competent court, that provision will be construed and adjusted to the minimum extent necessary to make it valid and enforceable, and the rest of the Agreement will remain in full force and effect.

14.3. Assignment

Neither Party may assign this Agreement, or the rights or obligations arising from it, without the prior written consent of the other Party, except in the context of a merger, acquisition or sale of substantially all the assets of that Party.

14.4. No Waiver

The failure of either Party to exercise a right under this Agreement will not be construed as a waiver of that right or of its future exercise.

14.5. Notices

Every notice under this Agreement will be given in writing, to the contact addresses indicated in the signature block of Section 15, or to those each Party later communicates in writing to the other.

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15. Acceptance

The execution of this Agreement by both Parties constitutes full and unconditional acceptance of its terms.

For PIVET DIGITAL AUTOMATIONS LLC:

Name	_____
Title	_____
Address for notices	_____
Email for notices	_____
Signature	_____
Date	_____

For the Client:

Company Name	_____
Name	_____
Title	_____
Address for notices	_____
Email for notices	_____
Signature	_____
Date	_____